

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: July 2, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Corebiz Partners, LLC v. Inspire Diagnostics, LLC 2024-01405775 Motion for New Trial	Plaintiff Corebiz Partners, LLC's Motion for New Trial is DENIED. The Court grants Plaintiff's Requests for Judicial Notice filed on 5/26/26 (ROA 99). A motion for new trial based on inadequate damages or insufficient evidence must be based upon the Court's minutes. (Code of Civ. Proc., § 658.) This includes the records of the proceedings before the trial court and the documentary evidence presented at trial. (Code of Civ. Proc., §660, subd. (a); Gov. Code, § 69844.) Because Plaintiff served its memorandum and supporting documents on 5/26/26, Defendant's deadline to file and serve the opposition was 6/5/26. (Code Civ. Proc., § 629a.) Defendant untimely served and filed its opposition beyond the ten day deadline. The Court declines to consider Defendant's untimely opposition. Because Defendant served its opposition on 6/8/26, Plaintiff's deadline to file and serve the reply was 6/15/26, not including the weekend on which the deadline fell. (Code Civ. Proc. §§ 659a; 12a.) Plaintiff untimely filed
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	her reply beyond the five day deadline. The Court declines to consider the substantive portion of Plaintiff's untimely reply. Plaintiff points to three types of evidence to support her position. First, Plaintiff relies on trial testimony from Plaintiff's principal, Sungmin Kim, and Defendant's manager, Richard Salas. Plaintiff contends Kim testified that Plaintiff received only 50% of what was due to her and Salas testified that Inspire Diagnostics paid the commission owed to her on 50% the volume of tests performed at Spring Independent School District. Unfortunately, because the parties waived the presence of a court reporter at trial, there is no transcript of this testimony. (ROA 80 [4/29/26 Minute Order].) Accordingly, the Court cannot assess the veracity of Plaintiff's summary of this testimony since the same judge who presided over the trial is not deciding this motion. Second, Plaintiff relies on the parties' written stipulations submitted before trial wherein the parties agreed, among other things, that "Defendant Inspire Diagnostics paid a commission to CoreBiz Partners, LLC of \$38,880.16 for the testing ordered by Spring ISD." (RJN, Exh. 2, ¶ 3.) Plaintiff contends both parties testified at trial that that sum was the commission owed for half of the tests performed at Spring ISD. Again, because there is no transcript, the Court cannot assess the veracity of this statement. Lastly, Plaintiff relies on documentary evidence. Specifically, Plaintiff contends Trial Exhibit 4 supports her position that Plaintiff was only paid 50% of the commissions she is owed from Spring ISD. Trial Exhibit 4 is an email chain regarding commission payment of \$6,527.83, which consisted of the following emails, dated 1/19/23; 1/20/23; 1/21/23. Plaintiff's position is premised on her conclusion that she is entitled to commissions on 100% of the tests performed at Spring ISD. The Sales Agreement defined Plaintiff's assigned territory as, "the non-exclusive right to pursue business opportunities in the United State (sic) and all specific accounts (by location) as pre-qualified by email transmittal to the Company." (Trial Exh. 1, ¶ 2.) Pursuant to the Agreement, Plaintiff was to be paid commission "for services performed [for] all customer Orders solicited by the Representative . . . or received directly by the Company from the customer." (Trial Exh. 1, ¶ 4.) The Agreement then specifies different rates based on the quantity and type of test performed. (Ibid.) Plaintiff's motion does not contest the Court's finding that the Sales Agreement was a non-exclusive territory agreement. Further, Plaintiff does not point to any evidence submitted at trial proving the Spring ISD account was her
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	"specific account" that was "pre-qualified" by Defendant. Thus, even assuming the truth of Plaintiff's summary of the trial testimony, the fact that Inspire Diagnostic paid commissions of only 50% of the volume of the Spring ISD tests does not prove Plaintiff received only 50% of the commissions she was owed. Additionally, Plaintiff has not pointed to any evidence presented at trial of the number and type of tests performed at Spring ISD. Accordingly, there is no evidence that Defendant's estimate of the commission she was paid in fact constituted an underpayment. Citing Evidence Code section 412 and CACI Jury Instruction No. 203, Plaintiff argues that since all the evidence of payments and commissions computed were in the control of Defendant, it was the party with the negative presumption, not Plaintiff. Evidence Code section 412 provides: "If weaker and less satisfactory evidence is offered when it was within the power of the party to produce stronger and more satisfactory evidence, the evidence offered should be viewed with distrust." However, this inference is permissible rather than mandatory. (See 3 Witkin, California Evidence (6th ed. 2026) § 137.) As such, when the Court made its findings after considering all the evidence, including witness testimony that is not available to the present Court, it was not required to apply section 412. Having not had the opportunity to evaluate the witness testimony, the present Court is not convinced Evidence Code section 412 should apply. Further, CACI No. 203 is inapplicable since this was a bench trial. Citing <i>Acree v. General Motors Acceptance Corp.</i> (2001) 92 Cal.App.4th 385, Plaintiff also argues the Court need not know the precise number of tests ordered or the commission rate for each test given damage to Plaintiff occurred. Plaintiff's reliance on <i>Acree</i> is misplaced. In <i>Acree</i>, the court held, "Where the <i>fact</i> of damages is certain . . . the <i>amount</i> of damages need not be calculated with absolute certainty. The law requires only that some reasonable basis of computation be used, and the result reached can be a reasonable approximation." (<i>Acree, supra</i>, 92 Cal.App.4th at p. 398.) Plaintiff here has not established that her damages were certain. While the parties stipulated that Plaintiff was paid commissions of \$38,880.16, without any evidence establishing this amount represented an underpayment, the Court cannot conclude Plaintiff incurred any damages from the breach of contract. Therefore, the Court is not convinced from the entire record that a different decision clearly should have been reached. The motion is DENIED.
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